Calendar Line 7
Case Name: ***John Doe. L.M. v. Craig Chandler et al.***
Case No.: **25CV471073**

Plaintiff's Motion to Compel California Commission on Teacher Credentialing's Compliance With Subpoena for Production of Business Records

Procedural Background

Plaintiff moves pursuant to Code of Civil Procedure sections 1987.1 and 2025.480 to compel nonparty California Commission on Teacher Credentialing ("CCTC") to comply with a deposition subpoena for production of business records served October 23, 2025, with a production date of November 21, 2025. The subpoena seeks investigative, disciplinary, credentialing, and related records concerning Craig Richard Chandler, a former teacher alleged to have sexually abused Plaintiff. Plaintiff also seeks monetary sanctions in the amount of $3,060 pursuant to Code of Civil Procedure sections 1987.2 and 2023.010.

CCTC opposes the motion, asserting procedural defects, statutory confidentiality under the Education Code, official information and deliberative process privileges under Evidence Code section 1040, privacy concerns, and limitations on production based on *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039.

Procedural Objections

Although CCTC contends Plaintiff failed to meet and confer regarding specific entries in the January 2026 privilege log, the record reflects that the parties engaged in substantive meet and confer efforts addressing the core disputes, including categorical objections based on statutory confidentiality, privilege, and privacy. The subsequent identification of individual log entries does not alter the essential nature of the dispute, which has been fully briefed.

Accordingly, the Court declines to deny the motion on procedural grounds. The motion is properly considered on its merits.

Relevance and Scope of Discovery

Discovery is permitted as to "any nonprivileged matter that is relevant to the subject matter involved in the pending action or reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.)

The subpoena seeks CCTC records relating to Defendant Chandler's ("Chandler") credentialing, disciplinary history, and investigative file, including application materials, criminal conviction disclosures, internal notes, and committee materials.

The privilege log reflects that responsive documents include Chandler's 2002 credential application and criminal conviction disclosure, 2003 investigative notes concerning diversion proceedings, internal chronology entries, requests for law enforcement records, and agenda and committee materials addressing credential issuance and disciplinary determinations.

These materials are relevant to issues of notice, foreseeability, and negligent hiring and supervision. They bear on what information was known or available to CCTC regarding Chandler's fitness to teach and the actions the agency took in response.

The relevance threshold under Code of Civil Procedure section 2017.010 is satisfied.

Education Code Confidentiality Provisions

Education Code section 44230, subdivision (a)(2), provides that credential-related information shall not be disclosed absent an order of a court of competent jurisdiction. This language contemplates judicial authorization rather than absolute nondisclosure. Education Code section 44248 imposes criminal penalties for unauthorized disclosure by Commission personnel but does not restrict a court's authority to order production in civil discovery. These provisions therefore require court supervision of disclosure and appropriate protective conditions, rather than categorical immunity from discovery.

Official Information Privilege and Privacy

Evidence Code section 1040 provides a qualified privilege for official information where disclosure is against the public interest. (Evid. Code, § 1040, subds. (a), (b).)

The Court must balance the public interest in confidentiality against the interest of justice in disclosure. Here, the requested materials concern completed credentialing and disciplinary proceedings involving a former educator later convicted of aggravated sexual assault. The litigation concerns institutional notice, foreseeability, and the adequacy of credentialing safeguards.

While the Court recognizes legitimate confidentiality interests, including protection of third-party identifying information and certain internal deliberative materials, those interests are not sufficient to justify wholesale withholding of responsive records.

Any legitimate confidentiality concerns may be addressed through targeted redaction of personal identifiers, entry of a protective order limiting use and dissemination, and *in camera* review, if necessary, for narrowly disputed categories

Business Records Subpoena and *Cooley v. Superior Court*

CCTC contends that certain documents identified in the privilege log are not "business records" because they were not authored by the Commission and therefore cannot be produced under a business records subpoena. This argument misapprehends *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039. *Cooley* addresses the evidentiary requirements for a custodian's certification of business records under Evidence Code section 1561. It does not create a discovery privilege and does not authorize a nonparty agency to withhold otherwise responsive documents in its possession.

A subpoenaed entity must produce responsive, nonprivileged documents within its possession, custody, or control that are maintained, received, or relied upon in the ordinary course of its regulatory functions. Whether a particular document can later be authenticated under Evidence Code section 1561 is a separate evidentiary issue that does not govern discoverability.

Accordingly, CCTC may not withhold responsive records on the ground that they were authored by third parties or that the custodian cannot provide a complete certification. To the extent CCTC contends certain documents cannot be authenticated under Evidence Code section 1561, it shall identify those documents with specificity and provide a supplemental declaration explaining the limitation.

Redaction and Protective Conditions

CCTC's privacy concerns are well taken, particularly with respect to third-party identifying information. However, those concerns can be adequately addressed through narrowly tailored redactions, including but not limited to: Social Security numbers, home addresses, dates of birth, and other sensitive personal identifying information of third parties and nonparties.

A protective order should govern dissemination and use of produced materials.

Sanctions

The issues presented involve substantial questions regarding statutory confidentiality provisions, qualified governmental privileges, and subpoena enforcement standards. The Court finds the positions of both parties were substantially justified. (Code Civ. Proc., §§ 1987.2, 2023.010.) As such, the Court denies all requests for sanctions.

DISPOSITION

The motion is GRANTED IN PART and DENIED IN PART as follows:

1. CCTC shall produce all responsive, nonprivileged documents within its possession, custody, or control consistent with this ruling, including records maintained, received, or relied upon in the Commission's credentialing and disciplinary functions.
2. Permissible redactions shall be made to protect third-party privacy interests as set forth above.
3. CCTC shall provide a supplemental declaration identifying any documents it contends cannot be authenticated under Evidence Code section 1561 and explaining the basis for such limitation.
4. Sanctions are denied.

Plaintiff to prepare the proposed order accompanied by the necessary EFS-020 Form within 7 days of the hearing.

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Calendar Line 8
Case Name: ***Ari Lazier v. Ford Motor Company et al.***
Case No.: **25CV478936**

PETITION TO COMPEL ARBITRATION

Plaintiff Ari Lazier ("Plaintiff") purchased a 2020 Ford Transit ("Subject Vehicle") in January 2020 from Walnut Creek Ford ("Dealership"). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Dealership "breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 61.) Plaintiff sued Dealership and Ford Motor Company in October 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract ("RISC") signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act ("FAA") governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The arbitration provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex. A.) Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's